

SPECIAL VERDICT FORM

We, the jury, present our Answers to the Questions submitted by the Court, to which we have all agreed:

Plaintiffs' Two (2) Tying Claims

Relevant Antitrust Market

QUESTION NO. 1: Have Plaintiffs proven by a preponderance of the evidence a relevant antitrust market for their alleged tying product, high-fidelity, DRM-free digital downloads of electronic dance music globally?

ANSWER NO. 1 (yes or no)

QUESTION NO. 2: Have Plaintiffs proven by a preponderance of the evidence a relevant antitrust market for their alleged tied product, live performances by A-list DJs at nightclubs in the Denver metro area?

ANSWER NO. 2 (yes or no)

If you answered "no" to either of the above two QUESTIONS on Market Definitions, skip QUESTIONS 3 through 10 and proceed to QUESTION 11. If you answered "no" to QUESTION 1 concerning tying market definition, but "yes" to QUESTION 2 on tied market definition, please answer QUESTIONS 3 through 10.

Elements of Both Tying Claims

QUESTION NO. 3: Have Plaintiffs proven by a preponderance of the evidence that digital music downloads and live performances by A-list DJs are separate products or services?

ANSWER NO. 3 (yes or no)

QUESTION NO. 4: Have Plaintiffs proven by a preponderance of the evidence that at least one of the Defendants conditioned A-list DJs' access to and promotion by Beatport within the tying market on A-list DJs performing at Defendant Beta Nightclub, or not performing at Plaintiffs The Church or Vinyl?

ANSWER NO. 4 (yes or no)

QUESTION NO. 5: Have Plaintiffs proven by a preponderance of the evidence that this tying arrangement foreclosed a substantial amount of commerce in the tied market?

ANSWER NO. 5 (yes or no)

QUESTION NO. 6: Have Plaintiffs proven by a preponderance of the evidence that they were injured in their business or property because of this tying arrangement?

ANSWER NO. 6 (yes or no)

If you answered “no” to any of the above QUESTIONS 3 through 6 on Elements of Tying Claims, skip QUESTIONS 7 through 10 and proceed to QUESTION 11.

Plaintiffs’ Claim for Tying *Per Se*

A “yes” answer to QUESTION 7, as well as to QUESTIONS 3 through 6, above, is a finding for Plaintiffs on their claim for *Per Se* Tying. A “no” answer to QUESTION 7, or to any of QUESTIONS 3 through 6, is a finding for Defendants on this claim.

QUESTION NO. 7: Have Plaintiffs proven by a preponderance of the evidence that Beatport has sufficient market power in the tying market to restrain trade in the tied market?

ANSWER NO. 7 (yes or no)

QUESTION NO. 8: Do you find in favor of at least one of the Plaintiffs and against at least one of the Defendants on Plaintiffs’ claims for Tying *Per Se*?

ANSWER NO. 8 (yes or no)

QUESTION NO. 8a: If “yes”, please circle one or both of the Plaintiffs that have prevailed. Also, please circle one or both of the Defendants that you find against.

Plaintiff(s): The Church

Vinyl

Defendant(s): Bradley Roulier

Beta

Plaintiffs' Claim for Tying Under the Rule of Reason

A "yes" answer to QUESTION 9, as well as to QUESTIONS 3 through 6, above, is a finding for Plaintiffs on their claim for Tying under the Rule of Reason. A "no" answer to QUESTION 9, or to any of QUESTIONS 3 through 6, is a finding for Defendants on this claim.

QUESTION NO. 9: Have Plaintiffs proven by a preponderance of the evidence that the tying arrangement has unreasonably restrained trade in the tied market for live performances by A-list DJs in Denver?

ANSWER NO. 9 (yes or no)

QUESTION NO. 10: Do you find in favor of at least one of the Plaintiffs and against at least one of the Defendants on Plaintiffs' claims for Tying under the Rule of Reason?

ANSWER NO. 10 (yes or no)

QUESTION NO. 10a: If "yes", please circle one or both of the Plaintiffs that have prevailed. Also, please circle one or both of the Defendants that you find against.

Plaintiff(s): The Church

Vinyl

Defendant(s): Bradley Roulier

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Plaintiffs' Claim for Monopolization

All "yes" answers to QUESTIONS 11 through 13 is a finding for Plaintiffs on their claim for Monopolization. A "no" answer to any of QUESTIONS 11 through 13 is a finding for Defendants on that claim.

QUESTION NO. 11: Have Plaintiffs proven by a preponderance of the evidence that at least one of the Defendants had monopoly power in a definable market?

ANSWER NO.11 (yes or no)

QUESTION NO.11a: If your answer is "yes", please define that market as proven by Plaintiffs.

QUESTION NO. 12: Have Plaintiffs proven by a preponderance of the evidence that at least one of the Defendants willfully acquired or maintained that monopoly power through anticompetitive conduct?

ANSWER NO. 12 (yes or no)

QUESTION NO. 13: Have Plaintiffs proven by a preponderance of the evidence that they were injured in their business or property because of at least one of the Defendants' anticompetitive conduct?

ANSWER NO. 13 (yes or no)

QUESTION NO. 14: Do you find in favor of at least one of the Plaintiffs and against at least one of the Defendants on Plaintiffs' claim for Monopolization?

ANSWER NO.14 (yes or no)

QUESTION NO. 14a: If "yes", please circle one or both of the Plaintiffs that have prevailed. Also, please circle one or both of the Defendants that you find against.

Plaintiff(s): The Church

Vinyl

Defendant(s): Bradley Roulier

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Plaintiffs' Claim for Attempted Monopolization

All "yes" answers to QUESTIONS 15 through 18 is a finding for Plaintiffs on their claim for Monopolization. A "no" answer any of QUESTIONS 15 through 18 is a finding for Defendants on that claim.

QUESTION NO. 15: Have Plaintiffs proven by a preponderance of the evidence that at least one of the Defendants engaged in anticompetitive conduct?

ANSWER NO. 15 (yes or no)

QUESTION NO. 16: Have Plaintiffs proven by a preponderance of the evidence that at least one of the Defendants had a specific intent to achieve monopoly power in a market?

ANSWER NO. 16 (yes or no)

QUESTION NO. 16a: If your answer is "yes", please define that market as proven by Plaintiffs.

QUESTION NO. 17: Have Plaintiffs proven by a preponderance of the evidence that there was a dangerous probability that at least one of the Defendants would achieve their goal of monopoly power in this market?

ANSWER NO. 17 (yes or no)

QUESTION NO. 18: Have Plaintiffs proven by a preponderance of the evidence that they were injured in their business or property because of at least one of the Defendants' anticompetitive conduct?

ANSWER NO. 18 (yes or no)

QUESTION NO. 19: Do you find in favor of at least one of the Plaintiffs and against at least one of the Defendants on Plaintiffs' claim for Attempted Monopolization?

ANSWER NO. 19 (yes or no)

QUESTION NO. 19a: If "yes", please circle one or both of the Plaintiffs that have prevailed. Also, please circle one or both of the Defendants that you find against.

Plaintiff(s): The Church

Vinyl

Defendant(s): Bradley Roulier

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Defendants' Affirmative Defenses

Question 20: Have Defendants proven by a preponderance of the evidence their affirmative defense Plaintiffs failed to act in a commercially reasonable manner to mitigate damages?

ANSWER NO. 20 yes or no)

Question 21: Have Defendants proven by a preponderance of the evidence their affirmative defense to Plaintiffs' tying claim under the Rule of Reason that any challenged restraint was reasonably necessary to achieve competitive benefits, and any harm was outweighed by the benefits to competition and consumers?

ANSWER NO. 21 yes or no)

Plaintiffs' Damages

QUESTION NO. 22. What is the total amount of The Church's actual damages resulting from any of its claims of illegal tying, monopolization, and attempted monopolization? Actual damages are those damages described in Instruction 28. You should answer "0" if you determine there were none.

ANSWER NO. 22: \$ 0

Please circle one or both of the Defendants that you find against for these damages:

Defendant(s): Bradley Roulier

Beta

QUESTION NO. 23. What is the total amount of Vinyl's actual damages resulting from any of its claims of illegal tying, monopolization, and attempted monopolization? Actual damages are those damages described in Instruction 28. You should answer "0" if you determine there were none.

ANSWER NO. 23: \$ 0

Please circle one or both of the Defendants that you find against for these damages:

Defendant(s): Bradley Roulier

Beta

Affirmative Defense: Mitigation

Skip QUESTIONS 24 and 25 if you answered "no" to QUESTION 20.

QUESTION NO. 24. If you find that The Church sustained actual damages resulting from any of its claims of illegal tying, monopolization, or attempted monopolization, what is the total amount by which The Church could have reduced or eliminated its damages by acting in a commercially reasonable manner?

ANSWER NO. 24: \$ 0 (-) 0 = 0

QUESTION NO. 25. If you find that Vinyl sustained actual damages resulting from any of its claims of illegal tying, monopolization, or attempted monopolization, what is the total amount by which Vinyl could have reduced or eliminated its damages by acting in a commercially reasonable manner?

ANSWER NO. 25: \$ 0 (-) 0 = 0

Signatures of all jurors:

Jurors'
names
redacted